

interest, nor shall such a name be approved as a name under which milk-blended butter may be imported or dealt with.

Penalties for offences.

11.—(1) Any person guilty of an offence under this Act shall be liable on conviction under the Summary Jurisdiction Acts for a first offence to a fine not exceeding twenty pounds and for a second offence to a fine not exceeding fifty pounds and for a third or any subsequent offence to a fine not exceeding one hundred pounds, and in cases where imprisonment can be inflicted under section seventeen of the Sale of Food and Drugs Act, 1899, to such imprisonment as is by that section authorised.

(2) Section five of the Margarine Act, 1887 (which exempts employers from liability in certain cases), and section eleven of the same Act (which relates to the appropriation of penalties), and section twelve of the same Act (which relates to proceedings under that Act), shall apply to proceedings under this Act, with the substitution of references to this Act for references to the Margarine Act, 1887.

Amendment of s. 8 of Margarine Act, 1887.

12. Except in the Administrative County of London, section eight of the Margarine Act, 1887, shall have effect as if the words "inspector of weights and measures" were inserted after the word "nuisances."

Definition of margarine.

13.—(1) For the purposes of the Sale of Food and Drugs Acts and this Act the expression "margarine" shall mean any article of food, whether mixed with butter or not, which resembles butter and is not milk-blended butter.

(2) The above definition shall be substituted for the definition of margarine in the Margarine Act, 1887.

Short title, construction, and commencement.

14.—(1) This Act may be cited as the Butter and Margarine Act, 1907, and shall be construed as one with the Sale of Food and Drugs Act, 1899, and may be cited with the Sale of Food and Drugs Acts as the Sale of Food and Drugs Acts, 1875 to 1907.

(2) This Act shall come into operation on the first day of January one thousand nine hundred and eight.

CHAPTER 22.

An Act to amend the Law relating to Clerks of Petty Sessions in Ireland. [21st August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Extension to assistants of clerks of. 21 & 22 Vict. c. 100. s. 12.

1.—(1) All the provisions of section twelve of the Petty Sessions Clerk (Ireland) Act, 1858, and of any enactment amending the same, with reference to the gratuities or pensions which may be given to petty sessions clerks retiring from office through age or infirmity, shall apply to the assistants of

the clerks of petty sessions at Cork and Belfast appointed or hereafter to be appointed pursuant to the provisions of section ten of the said Act and approved of by the Lord Lieutenant.

(2) The power of making rules conferred on the Lord Lieutenant by section twenty-nine of the said Act shall extend to the making of rules respecting the qualifications, salaries, and appointment of any such assistants hereafter to be appointed and respecting the removal of any such assistants, whether existing or hereafter to be appointed.

2. This Act shall be read and construed as one with the Short title and construction. Petty Sessions Clerk (Ireland) Act, 1858, and the Acts amending the same, and may be cited as the Petty Sessions Clerk (Ireland) Amendment Act, 1907.

CHAPTER 23.

An Act to establish a Court of Criminal Appeal and to amend the Law relating to Appeals in Criminal Cases.

[28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

COURT OF CRIMINAL APPEAL.

1.—(1) There shall be a Court of Criminal Appeal; and the Lord Chief Justice of England and eight judges of the King's Bench Division of the High Court, appointed for the purpose by the Lord Chief Justice with the consent of the Lord Chancellor for such period as he thinks desirable in each case, shall be judges of that court. Constitution of Court of Criminal Appeal.

(2) For the purpose of hearing and determining appeals under this Act, and for the purpose of any other proceedings under this Act, the Court of Criminal Appeal shall be summoned in accordance with directions given by the Lord Chief Justice of England with the consent of the Lord Chancellor, and the court shall be duly constituted if it consists of not less than three judges and of an uneven number of judges.

If the Lord Chief Justice so directs, the court may sit in two or more divisions.

The court shall sit in London except in cases where the Lord Chief Justice gives special directions that it shall sit at some other place.

(3) The Lord Chief Justice, if present, and in his absence the senior member of the court, shall be president of the court.

(4) The determination of any question before the Court of Criminal Appeal shall be according to the opinion of the majority of the members of the court hearing the case.